

25STCV25358 25STCV25358

County: los-angeles

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Case Number: 25STCV25358 Hearing Date: August 17, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

6230

Yucca Urban Housing, LLC,

Plaintiff,

vs.

Harris

Shukran, et

al.,

Defendants.

Case No.:

25STCV25358

Hearing Date:

August 17, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT HARRIS

SHUKRAN'S MOTION TO SET ASIDE/VACATE JUDGMENT AFTER TRIAL

Background

On

August 28, 2025, Plaintiff 6230 Yucca Urban Housing, LLC ("Plaintiff") filed a complaint against Defendants Harris Shukran ("Shukran") and Kansept c/o Shala Shukran (jointly, "Defendants") for unlawful detainer.

On

October 8, 2025, Shukran filed an answer to the complaint.

On

November 19, 2025, Plaintiff filed a request to set the case for trial. Thereafter, on December 8, 2025, the Court held a non-jury trial. Plaintiff appeared, but Defendants did not.

On

February 13, 2026, the Court signed a judgment in favor of Plaintiff and against Defendants, awarding Plaintiff damages in the amount of \$79,622.26.

Shukran

"moves for an order (1) vacating the judgment entered after the December 8, 2025 nonjury trial and reflected in the February 18, 2026 minute order; (2) recalling and quashing the writ of possession issued February 20, 2026; (3) staying enforcement of the judgment pending determination of this motion; and (4) restoring this matter to the trial calendar so Defendant may present his answer and defenses." (Notice of Mot., 2:1-7.) Plaintiff did not file an opposition.

Legal

Standard

Code of Civil Procedure section 473, subdivision

(b) provides in pertinent part as follows:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. However, in the case of a judgment, dismissal, order, or other proceeding determining the ownership or right to possession of real or personal property, without extending the six-month period, when a notice in writing is personally served within the State of California both upon the party against whom the judgment, dismissal, order, or other proceeding has been taken, and upon the party's attorney of record, if any, notifying that party and the party's attorney of record, if any, that the order, judgment, dismissal, or other proceeding was taken against the party and that any rights the party has to apply for relief under the provisions of Section 473 of the Code of Civil Procedure shall expire 90 days after service of the notice, then the application shall be made within 90 days after service of the notice upon the defaulting party or the party's attorney of record, if any, whichever service shall be later. No affidavit or declaration of merits shall be required of the moving party."

"[T]he moving party has the burden of showing that the neglect leading to default was excusable." (JJackson v. Bank of Am. (1983) 141 Cal.App.3d 55, 58.) "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds as stated in Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 64].) Where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default, "very slight evidence will be required to justify a court in setting aside the default." (Ibid.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, 'these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.'" (Kendall v. Barker, 197 Cal. App. 3d 619, 623 (1988) (emphasis in original).)

For discretionary relief, “[t]he six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed. [Citation.] The six-month period runs from entry of default, not entry of judgment.” (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.) When accompanied by an attorney declaration, the six-month clock for mandatory relief from an attorney mistake runs from the entry of default judgment. (Sugasawara v. Newland (1994) 27 Cal.App.4th 294, 296-297.)

Discussion

Shukran moves under Code of Civil Procedure section 473, subdivision (b), to set aside the judgment against him due to mistake, inadvertence, surprise, or excusable neglect. Shukran asserts that “[t]he statute now contains a shorter 90-day period when a specified written notice concerning a judgment determining possession is personally served in California; the file should be checked for strict compliance with that provision. The public docket reflects electronic service of the February 18 notice, not personal service of the special statutory notice.” (Mot., 5:25-28.) As Shukran points out, he was not personally served with the judgment. Accordingly, the 90-day deadline for relief is inapplicable here. Rather, the six-month deadline to seek relief applies. Here, Shukran filed the instant motion on July 23, 2026, five months after entry of judgment on February 13, 2026. Thus, the motion is timely.

Shukran submits a declaration in support of the motion. In Shukran’s declaration, he attests that “[b]efore this action, Plaintiff filed an unlawful-detainer action concerning the Premises on or about June 26, 2025. That first action was voluntarily dismissed on or about August 6, 2025. [See Case No. 25STCV18551].” (Shukran Decl., ¶ 3.) Shukran explains that management locked him out of the premises on July 29, 2025, but his “personal property remained in the Premises” and he “continued to regard the Premises as my residence and intended to retain possession. I did not return all keys, execute a surrender agreement, or authorize Plaintiff to remove or dispose of my belongings.” (Shukran Decl., ¶¶ 5-6.) Shukran explains that “Plaintiff filed this second unlawful-detainer action on August 28, 2025, after management had already taken possession and excluded me from the Premises.” (Shukran Decl., ¶ 13.) Shukran further declares

that he “learned of this action and filed an Answer on October 8, 2025. My Answer showed that I intended to defend the case and contest Plaintiff’s right to recover possession and the amounts claimed.” (Shukran Decl., ¶ 14.)

Shukran further

attests the following: “[a]ccording to the court docket, Plaintiff filed a Request to Set Case for Trial on November 19, 2025, and the court issued an order setting trial and a certificate of mailing on November 20, 2025. The nonjury trial occurred on December 8, 2025.” (Shukran Decl., ¶ 15.) “I DID NOT RECEIVE the trial-setting notice before December 8, 2025. The address(es) at which I was receiving mail during that period were supposed to be the address I was illegally locked out of. I was homeless for a long period of time. Mail sent to the Premises was not reliably available to me because I had been excluded from the unit.” (Shukran Decl., ¶ 16.) “Had I known of the trial in time and understood that my appearance was required on December 8, 2025, I would have appeared and presented my defenses, documents, and testimony.” (Shukran Decl., ¶ 18.)

Shukran explains

that he “dispute[s] the judgment. Before Plaintiff filed this action, management had already taken possession and denied me meaningful access. I therefore dispute that Plaintiff was entitled to obtain possession from me through this later action or to charge holdover damages for a period when Plaintiff had already excluded me.” (Shukran Decl., ¶ 22.) Shukran declares that he has “meritorious defenses” and “[g]ranting relief will allow the dispute to be decided on its merits. I am prepared to proceed promptly and comply with all future court dates and orders.” (Shukran Decl., ¶¶ 24-25.)

Shukran’s motion asserts

that he “answered and thus demonstrated an intent to defend. Plaintiff had previously addressed Harris at Unit 707 while simultaneously asserting it had taken possession and while Harris claimed he could not enter. If the November 20 trial-setting order was mailed only to that inaccessible address, Harris’s lack of actual notice was not indifference to the action; it was a foreseeable product of the lockout and the chosen service address. Harris’s declaration must establish: (1) he did not actually receive the November 20 order before trial; (2) he had no other actual notice of the December 8 date; (3) where he was living and receiving mail; (4) whether his answer listed an email or alternate address; (5) when and how he learned of trial and judgment; and (6) why the interval before filing this motion was reasonable. These facts, if

proved, constitute surprise or excusable neglect causally connected to the nonappearance.” (Opp., 7:4-15.)

Pursuant to Shukran's

sworn declaration, he demonstrates that he did not have actual notice of the

non-jury trial and thus was unable to defend himself and present evidence. Shukran's

application for relief is timely, and the evidence presented demonstrates that Shukran did not intentionally decline to participate

in the instant action. Based on the foregoing explanation, and in light of the

lack of opposition, the Court finds that relief is proper under Code of Civil Procedure section 473, subdivision (b).

Conclusion

Based on the

foregoing, Shukran's motion

to, inter alia, vacate judgment is GRANTED. The Court vacates the Judgment

entered against Shukran on

February 13, 2026, and the Court recalls and quashes the writ of possession issued

February 20, 2026. The Court sets a Case Management Conference on _____,

2026 at 10:00 a.m. in Department 508.

Shukran

is ordered to provide notice of this Order.

DATED: August 17, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior

Court